



CHAPTER ci.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Tramways Act 1870 relating to Huddersfield Corporation Tramways Milnrow Urban District Council Tramways and Rawtenstall Corporation Tramways. [3rd August 1910.]

WHEREAS under the authority of the Tramways Act 1870 the Board of Trade have made the several Provisional Orders set out in the schedule to this Act annexed:

And whereas a Provisional Order made by the Board of Trade under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the authority of the said Act and set out in the schedule to this Act annexed be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Tramways Orders Confirmation Act 1910.

2. The several Orders as amended and set out in the schedule to this Act annexed shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full force and validity and the dates of the same respectively shall be the date of the passing of this Act.

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SCHEDULE.

LIST OF ORDERS.

HUDDERSFIELD CORPORATION TRAMWAYS.—Order authorising the Mayor Aldermen and Burgesses of the County Borough of Huddersfield to construct additional tramways in the said borough and for other purposes.

MILNROW URBAN DISTRICT COUNCIL TRAMWAYS.—Order authorising the Urban District Council of the Urban District of Milnrow to construct tramways in their district.

RAWTENSTALL CORPORATION TRAMWAYS.—Order authorising the Mayor Aldermen and Burgesses of the Borough of Rawtenstall to construct additional tramways in the said borough.

HUDDERSFIELD CORPORATION.

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Order authorising the Mayor Aldermen and Burgesses of the Huddersfield County Borough of Huddersfield to construct additional Tramways in the said Borough and for other purposes.

1. This Order may be cited as the Huddersfield Corporation Tram-ways Order 1910. Short title.

2. The provisions of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order. Incorporation of Act.

3. The several words terms and expressions to which by the Tramways Act 1870 meanings are assigned have in this Order the same respective meanings: Interpretation.

Provided that in this Order—

The expression “the tramways” means the tramways and works by this Order authorised;

The expression “the tramway undertaking” includes the tramway undertakings respectively authorised by the Huddersfield Improvement Act 1880 the Huddersfield Corporation Act 1882 the Huddersfield Tramways and Improvement Act 1890 the Huddersfield Corporation Act 1897 the Huddersfield Corporation Tramways Order 1897 confirmed by the Tramways Orders Confirmation (No. 2) Act 1897 the Huddersfield Corporation Tramways Order 1898 confirmed by the Tramways Orders Confirmation (No. 2) Act 1898 the Huddersfield Corporation Tramways Order 1900 confirmed by the Tramways Orders Confirmation (No. 1) Act 1900 the Huddersfield Corporation Tramways Act 1900 the Huddersfield Corporation Tramways Order 1903 confirmed by the Tramways Orders Confirmation (No. 1) Act 1903 the Huddersfield Corporation Act 1906 and the Huddersfield Corporation Tramway Order 1907 confirmed by the Tramways Orders Confirmation Act 1907; and

The expression “the corporation” means the mayor aldermen and burgesses of the county borough of Huddersfield acting by the council.

4. The corporation shall be the Promoters for the purposes of this Order and are in this Order referred to as “the Promoters.” Promoters.

5. The Promoters may construct and maintain subject to the provisions of this Order and in accordance with the plans and sections deposited for the purposes of this Order at the office of the Board of Trade the tramways herein-after described with all proper rails plates offices weighbridges stables carriage-houses warehouses works and conveniences connected therewith or for the purposes thereof; Construction of tramways.

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Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways authorised by this Order will be wholly situate in the borough of Huddersfield and are—

Tramway No. 1 about 5 furlongs 5·41 chains in length commencing in Halifax Road at a point on the boundary of the borough passing thence along or over Halifax Road and there terminating by a junction with the existing tramway of the corporation at a point about 18 yards south-east of Holly Bank Road:

Tramway No. 1 will be laid as a single line except between the following points where it will be laid as a double line (that is to say):—

In Halifax Road from a point 119 yards north-west of Birchencliffe Road to a point opposite Holly Bank Road.

Tramway No. 5 about 2 furlongs 1·95 chains in length commencing in New Street by a junction with the existing tramway of the corporation at a point about 15 yards north of Ramsden Street passing thence along or over New Street Ramsden Street and Queen Street South and there terminating by a junction with the existing tramway of the corporation at a point about 15 yards south of East Parade:

Tramway No. 5 will be laid as a double line except between the following points where it will be laid as a single line (that is to say):—

In Queen Street South between two points respectively 1 yard north of Back Ramsden Street and 15 yards south of East Parade.

Tramway No. 6 about 3 furlongs 9·88 chains in length commencing in Newsome Road by a junction with the existing tramway of the corporation at a point about 56 yards south of Stile Common Road passing thence along or over Newsome Road and there terminating at a point opposite the south-west side of Jack Royd Lane:

Tramway No. 6 will be laid as a double line except between the following points where it will be laid as a single line (that is to say):—

In Newsome Road from a point about 146 yards south-west of Tunnacliffe Road to the termination of the tramway.

The tramways shall be constructed on the same gauge as the existing tramways of the Promoters that is to say on a gauge of four feet seven and three quarter inches.

There shall not be run on the tramways carriages or trucks adapted for use on railways. A.D. 1910.

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6. Subject to the provisions of this Order the tramways shall for all purposes form part of the tramway undertaking and the Promoters and their lessees and licencees may in respect of the tramways exercise and enjoy all and the like powers rights privileges and authorities which they now may or are empowered to exercise and enjoy and shall be subject and liable to the like penalties conditions restrictions and stipulations as they are subject and liable to with respect to the tramway undertaking or any part thereof and may demand take and recover in respect of the tramways or any part or parts thereof the like tolls rates and charges for the use thereof and for the conveyance thereon of traffic of all kinds and for the use of carriages placed and run thereon by them as they are authorised to demand and take in respect of the tramways authorised by the Huddersfield Corporation Tramways Order 1897 Provided that nothing in this Order shall be deemed to extend the provisions of section 23 of the Huddersfield Corporation Tramways Act 1900 to the tramways by this Order authorised or to authorise the taking of lands otherwise than by agreement. Tramways to form part of tramway undertaking.

7. Notwithstanding anything to the contrary contained in the Tramways Act 1870 or in the Huddersfield Corporation Act 1906 the corporation may and are hereby empowered to run on and along Tramways Nos. 5 and 6 by the said Act of 1906 authorised carriages and trucks with an overhang of not exceeding one foot ten inches on each side thereof. Power to run carriages and trucks of particular form on certain tramways.

8. Nothing in this Order contained shall exempt the Promoters or any person using the tramways or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates tolls and charges authorised by this Order. Saving for general Acts.

MILNROW URBAN DISTRICT COUNCIL.

Order authorising the Urban District Council of the Urban District of Milnrow to construct Tramways in their District. *Milnrow.*

Preliminary.

1. This Order may be cited as the Milnrow Urban District Council Tramways Order 1910. Short title.

2. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking). Incorporation of Acts.

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and of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order.

Interpreta-
tion.

3. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order meanings are assigned have in this Order the same respective meanings:

Provided that in this Order—

The expression "the district" means the urban district of Milnrow in the county Palatine of Lancaster;

The expression "the council" means the council of the district;

The expression "the tramways" means the tramways and works by this Order authorised or (as the case may be) any part thereof;

The expression "the undertaking" means the undertaking by this Order authorised;

The expression "mechanical power" includes steam electrical and every other motive power not being animal power and the word "engine" includes motor.

Promoters.

4. The council shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters."

Lands.

5. The Promoters may—

(A) Subject to the sanction of the Local Government Board and under such conditions as they may prescribe from time to time appropriate and use for any of the purposes of this Order but subject to the provisions (if any) under which such lands were respectively acquired any lands not dedicated to public use from time to time vested in them:

(B) By agreement from time to time purchase and acquire for the purposes of the undertaking such lands as they may require and may from time to time sell let or dispose of any such lands which may not be necessary for such purposes Provided that all sums received by the Promoters from the sale of such lands or from fines or premiums on leases of the same shall be applied solely in repayment of outstanding loans and that such moneys shall not be applied to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board:

Provided that they shall not at any time hold for such purposes more than five acres of land Provided also that nothing in this Order shall exonerate the Promoters from any indictment action or other

proceeding for nuisance in the event of any nuisance being caused or permitted by them upon lands appropriated or taken under the powers of this section. A.D. 1910.
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Construction of Tramways.

6. The Promoters may subject to the provisions of this Order— Construction of tramways.

(A) Construct and maintain in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order (which plans and sections are in this Order referred to respectively as "the deposited plans" and "the deposited sections") the tramways hereinafter described with all proper rails plates sleepers junctions turntables turnouts works and conveniences connected therewith or for the purposes thereof:

(B) Erect or construct on any lands taken or appropriated under the powers of this Order any offices stables sheds workshops stores waiting-rooms or other buildings yards works and conveniences for the purposes of the undertaking:

Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the Act of 1882 apply except in accordance with and subject to the provisions of that section.

The tramways authorised by this Order will be wholly situate within the district and are as follows (that is to say):—

Tramway No. 1 (6 furlongs 6·07 chains in length whereof 4 furlongs 8·57 chains are single line and 1 furlong 7·50 chains are double line) commencing in Rochdale Road Firgrove in the township or parish and urban district of Milnrow by a junction with Tramway No. 13 authorised by the Rochdale Corporation Act 1900 at the boundary of the urban district of Milnrow and the county borough of Rochdale and passing thence in a south-easterly direction into and along Rochdale Road Bridge Street and Dale Street and terminating therein by a junction with Tramway No. 2 herein-after described at a point opposite the north-western side of Church Street:

The whole of the above-mentioned Tramway No. 1 will be laid as a single line except at the following places where it will be a double line (that is to say):—

In Rochdale Road—

(A) Between the commencement of the tramway at the boundary of the urban district of Milnrow and a point 2·00 chains therefrom in a south-easterly direction;

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(B) Between points respectively 50 chain and 4.50 chains south-eastward from the south-eastern side of Uncouth Road ;

(c) Between points respectively 1.60 chains and 8.10 chains south-eastward from the south-eastern side of Whitehead Street ;

In Bridge Street and Dale Street—

(D) From a point .80 chain eastward from the western side of Shore Street to a point 4.20 chains north-westward from the north-western side of Church Street :

Provided that Tramway No. 1 shall not be laid opposite No. 1 Belfield Lane and No. 272 Rochdale Road so as to leave a less space than nine feet six inches between the nearest rail of the tramway and the outside of the footpath or other road limit on either side of the road or opposite Nos. 26 to 36 Bridge Street (even numbers) so as to leave a less space than nine feet six inches between the nearest rail of the tramway and the outside of the footpath or other road limit on the side of the road upon which such properties abut.

Tramway No. 2 (7 furlongs 6.23 chains in length whereof 5 furlongs 1.23 chains are single line and 2 furlongs 5.0 chains are double line) commencing in Dale Street by a junction with Tramway No. 1 at a point opposite the north-western side of Church Street and passing thence in a south-easterly direction into and along Dale Street and Newhey Road and terminating in such last-mentioned road at a point opposite the south-eastern side of Huddersfield Road (Newhey) :

The whole of the above-mentioned Tramway No. 2 will be laid as a single line except at the following places where it will be a double line (that is to say) :—

In Dale Street—

(A) Between points respectively 3.80 chains and 9.80 chains south-eastward from the north-western side of Church Street ;

In Newhey Road—

(B) Between points respectively opposite to and 3.00 chains south-eastward from the north-western side of Stone Street ;

(c) Between points respectively opposite to and 4.00 chains south-eastward from the north-western side of Schofield Street ;

(D) Between points respectively 2.10 chains northward and .90 chain southward from the northern side of View Street ;

(E) Between points respectively 2·60 chains northward and 1·40 chain south-eastward from the south-eastern side of Bentgate Street; A.D. 1910.
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(F) Between points respectively 7·30 chains and 1 furlong 3·30 chains south-eastward from the south-eastern side of Bentgate Street.

7. The tramways shall be constructed on a gauge of four feet eight-and-a-half inches but carriages and trucks adapted for use on railways shall not be run on the tramways. Gauge of tramways.

8. In addition to the requirements of section 26 of the Tramways Act 1870 the Promoters shall lay before the Board of Trade a plan showing the proposed mode of constructing laying down and renewing the tramways and a statement of the materials intended to be used therein and the Promoters shall not commence the construction laying down and renewal of any of the tramways or part of any of the tramways respectively until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement and under the superintendence and to the reasonable satisfaction of the surveyor of the road authority as provided by the said section. Provisions as to construction of tramways.

9. The rails of the tramways shall be such as the Board of Trade may approve. Rails of tramways.

10.—(1) The Promoters shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the substructure upon which the same rest and if the Promoters at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be liable to a penalty not exceeding five pounds and to a penalty not exceeding five pounds for every day on which such non-compliance continues. Penalty for not maintaining rails and roads.

(2) In case it is represented in writing to the Board of Trade by the road authority of any district in which the tramways or any portion thereof are or is situate or by twenty inhabitant ratepayers of the district that the Promoters have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if the officer reports that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Promoters to such penalty or penalties in respect thereof as is or are by this section imposed.

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be kept on
level of sur-
face of road.

11. If the Promoters or any other road authority hereafter alter the level of any road along or across which any part of the tramways is laid or authorised to be laid the Promoters may and shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Crossovers
to be con-
structed in
certain cases.

12. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Promoters shall if and where required by the Board of Trade construct a crossover or crossovers connecting the one tramway with the other and by the means of such crossover or crossovers the traffic shall when necessary be diverted from one tramway to the other.

Power to
make addi-
tional cross-
overs and to
double tram-
way lines.

13.—(1) The Promoters may subject to the provisions of this Order with the consent of the Board of Trade make maintain alter and remove such crossovers passing places sidings junctions and other works in addition to those particularly specified in and authorised by this Order as they find necessary or convenient for the efficient working of the tramways or for providing access to any warehouses stables or carriage-houses or works of the Promoters.

(2) Notwithstanding anything shown on the deposited plans the Promoters may with the consent of the Board of Trade lay down double lines in lieu of single or interlacing lines or single lines in lieu of double or interlacing lines or interlacing lines in lieu of double or single lines on any of the tramways and may with the like consent at any time alter the position in the road of any of the tramways or any part thereof Provided that the uppermost surface thereof shall be on a level with the surface of the road.

(3) Provided that if in the construction of any works under this section any rail is intended to be so laid that for a distance of 30 feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Promoters shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops and warehouses abutting on the place where such less space would intervene and such rail shall not be so laid if the owners or occupiers of one-third of such houses shops or warehouses by writing under their hands addressed and delivered to the Promoters within three weeks after receiving the notice from the Promoters express their objection thereto.

(4) In places where the Promoters may not be the road authority the construction of any works under this section shall be subject to the approval of that authority.

14. When by reason of the execution of any work affecting the surface or soil of any road along or across the carriageway of which any of the tramways are or is laid it is in the opinion of the Promoters necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Promoters may construct in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of the tramway so removed or discontinued subject in places in which the Promoters may not be the road authority to the approval of the road authority and to such regulations as that authority may make.

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Temporary tramways may be made when necessary.

15. The Promoters may erect and maintain shelters or waiting-rooms for the accommodation of passengers and may with the consent of the local authority and road authority use for that purpose portions of the public streets or roads.

Shelters or waiting-rooms.

16. Any paving metalling or material excavated by the Promoters in the construction of the tramways from any road under their jurisdiction or control shall absolutely vest in and belong to the Promoters and may be dealt with removed and disposed of by them in such manner as they may think fit.

Application of road materials excavated in construction of works.

17. Section 30 of the Tramways Act 1870 shall extend and apply to the aqueducts conduits or lines of pipes authorised by section 6 of the Oldham Corporation Act 1909 in like manner as if the corporation of Oldham were a company or person owning water-mains pipes or apparatus and all works under the said thirtieth section of the Tramways Act 1870 involving interference with such aqueducts conduits or lines of pipes shall be made and executed by the corporation and not otherwise upon the request and at the cost of the Promoters.

For protection of Oldham Corporation.

18. The tramways shall not be opened for public traffic until they have been inspected and certified to be fit for such traffic by the Board of Trade.

Tramways not to be opened until certified by Board of Trade.

Motive Power.

19. The carriages used on the tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say):—

Provisions as to motive power.

(1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade:

(2) The Board of Trade shall make regulations (in this Order referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Order of mechanical power on the tramways and for regulating the use of electrical power:

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(3) The Promoters or any person using any mechanical power on the tramways contrary to the provisions of this Order or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof:

(4) The Board of Trade if they are of opinion—

(A) that the Promoters or such person have or has made default in complying with the provisions of this Order or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or

(B) that the use of mechanical power as authorised under this Order is a danger to the passengers or the public; may by order either direct the Promoters or such person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Promoters or such person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

Mechanical
power works.

20. For the purpose of working the tramways by mechanical power the Promoters and their lessees subject to the provisions of this Order (and as to the lessees subject to the terms of their lease) may—

(A) construct provide maintain and use on any lands appropriated or acquired by them under the powers of this Order stations for transforming electrical power with all necessary or proper machinery dynamos engines buildings works and conveniences:

(B) place construct erect lay down make and maintain on above or below the surface of any street or road within the borough posts (but as regards any post on the carriageway not without the express approval of the Board of Trade and subject to such conditions as to removal as that Board may impose) brackets electric conductors wires boxes apparatus subways tunnels cables tubes and openings:

(C) with the consent of the owners and occupiers of any houses or buildings within the district affix to such houses or buildings or maintain brackets wires and apparatus.

Mechanical
power works
to be subject
to Tramways
Act 1870.

21. All works to be executed by the Promoters or their lessees in any street or road for working the tramways by mechanical power in pursuance of the powers of this Order shall be deemed to be works of

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a tramway subject in all respects (save as by this Order otherwise expressly provided) to the provisions of the Tramways Act 1870 as in this Order incorporated as if they had been therein expressly mentioned. Provided always that nothing in this Order contained shall authorise the opening or breaking up of any street or road outside the district and that section 30 (except subsections 1 and 5 thereof) of the Tramways Act 1870 in its application to the undertaking shall have effect as if wires or apparatus laid in a road included wires or apparatus erected or carried over a street road or footpath.

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22. Subject to the provisions of this Order the Board of Trade may make byelaws with regard to any of the tramways upon which mechanical power may be used for all or any of the following purposes (that is to say):—

Byelaws.

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages;

For regulating the emission of smoke or steam from engines used on the tramways;

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety;

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages;

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Order shall be liable to a penalty not exceeding forty shillings.

23. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the local authority to make any byelaws sanctioning a higher rate of speed than that authorised by the Board of Trade regulations at which engines are to be driven or propelled on the tramways under the authority of this Order but the byelaws of the local authority may restrict the rate of speed to a lower rate than that so authorised.

Amendment
of Tramways
Act 1870 as
to byelaws
by local
authority.

24. The following provisions shall apply to the use of electrical power under this Order unless such power is entirely contained in and carried along with the carriages:—

Special pro-
visions as to
use of elec-
trical power.

(1) The Promoters shall employ either insulated returns or uninsulated metallic returns of low resistance:

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- (2) The Promoters shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus:
- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return:
- (4) The Promoters shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Promoters either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking:
- (5) At the expiration of two years from the passing of the Act confirming this Order the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintenance and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents:
- (6) If any difference arises between the Promoters and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board

and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :

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- (7) In this section the expression "the Promoters" includes any person owning working or running carriages over the tramways.

25. Notwithstanding anything in this Order contained if any of the works by this Order authorised involves or is likely to involve any alteration of any telegraphic line belonging to or used by His Majesty's Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

Alteration of
telegraph
lines of Post-
master
General.

26. In the event of any of the tramways being worked by electricity the following provisions shall have effect :—

For protec-
tion of Post
Office tele-
graph lines.

- (1) The Promoters shall construct their electric lines and other works of all descriptions and shall work the undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by the Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein. Any difference which arises between the Postmaster-General and the Promoters as to compliance with this subsection shall be referred to arbitration :

- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of the undertaking the Promoters shall pay the expenses of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :

- (3) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work. Any difference which arises between the Postmaster-General and

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the Promoters as to any requirement so made shall be referred to arbitration :

- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works by this Order authorised is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any such works or to the working of the undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated for the purposes of this Order at any works of the Promoters enter thereon for the purpose of inspecting the plant and the working of the same and the Promoters shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Promoters pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognisance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order :

(9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882: A.D. 1910.

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(10) Any question or difference arising under this section which is directed to be referred to arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act:

(11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid:

(12) In this section the expression "the Promoters" includes any person owning working or running carriages over any of the tramways of the Promoters.

27.—(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or public road by the Promoters in connexion with the tramways and to lengthen adapt alter and replace such posts standards and brackets for the purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions:—

Use of tram-
way posts by
Postmaster-
General.

(A) In placing maintaining or altering such telegraph no obstruction shall be caused to the traffic along or the working or user of the tramways:

(B) The Postmaster-General shall give to the Promoters not less than twenty-eight days' notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as herein-after provided:

(C) Unless otherwise agreed between the Postmaster-General and the Promoters the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and

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the expense of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the tramways or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Promoters or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section :

(D) Unless otherwise agreed or in case of difference determined as herein-after provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest from the trolley wires Any difference as to the conditions of attachment shall be determined as herein-after provided :

(E) Unless otherwise agreed with the approval of the Board of Trade no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road :

(F) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper condition and state of repair :

(G) The Postmaster-General shall make good to the Promoters and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Promoters their officers or servants :

(H) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Promoters and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Promoters or failing agreement determined as herein-after provided :

(I) The Promoters shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of

the powers conferred by this section and caused by the maintaining and working of the tramways or by any accident arising thereon or by the authorised use by the Promoters of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Promoters their officers or servants:

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- (j) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days' notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Promoters the value of the same. Provided that if the Promoters or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as herein-after provided.

(2) Nothing in this section contained shall prevent the Promoters from using their posts standards or brackets for the support of any of their electric wires and apparatus whether in connexion with their tramways or other undertakings or shall take away any existing right of the Promoters of permitting the use by any company or person of their posts standards or brackets in connexion with the lighting of the streets or otherwise. Provided that any difference between the Postmaster-General and such company or person in relation to the use of the posts standards or brackets by the Postmaster-General and such company or person respectively shall be determined as herein-after provided.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section—

The expression "the Promoters" includes their lessees;

The expression "telegraph" has the same meaning as in the Telegraph Act 1869;

Other expressions have the same meaning as in the Telegraph Act 1878.

28. The tramways may be used for the purpose of conveying passengers animals goods minerals and parcels:

Traffic upon
tramways.

Provided that the Promoters or their lessees or any company or person for the time being working the tramways shall not convey or permit to be conveyed goods or minerals (not including parcels up to 56 lbs. in weight) by the tramways in competition with the

A.D. 1910. traffic on any railway now existing and for the time being owned
Milnrow. worked or used by the Lancashire and Yorkshire Railway Company without the consent in writing of that company.

If any difference arise under this provision as to what is competitive traffic that difference shall be referred to the Railway and Canal Commissioners in accordance with section 8 of the Regulation of Railways Act 1873.

Promoters' lessees not bound to carry animals goods &c.

29. The Promoters' lessees shall not be bound to carry unless they think fit any animals goods minerals or parcels other than passengers' luggage not exceeding twenty-eight pounds in weight.

Provisions as to carriage of animals goods &c.

30. In case the Promoters' lessees carry animals goods minerals or parcels they may and when required by the Promoters shall carry the same in separate carriages or separate parts of carriages set apart for that purpose Provided that this provision shall not apply to the carriage of passengers' luggage not exceeding twenty-eight pounds in weight.

For protection of Lancashire and Yorkshire Railway Company.

31. For the protection of the Lancashire and Yorkshire Railway Company (in this section called "the Company") the following provisions shall unless otherwise agreed between the promoters and the Company be observed and have effect in relation to the construction working use and maintenance of the tramways and the works connected therewith and of any works for the purpose of working the tramways by mechanical power where the same are intended to cross any bridge carrying any road over any railway siding or works belonging to the Company (that is to say):—

(1) In this section the word "apparatus" includes electric mains wires conductors posts tubes boxes apparatus and any similar appliances to be used as or for the purposes of a motive power for the carriages running on the tramway and includes also any brackets wires and apparatus for the purposes of such apparatus:

(2) All works by this Order authorised where the same shall be made upon or over any bridge or the approaches thereto or other work belonging to or maintainable by the Company or will otherwise affect the same shall be executed so as not to interfere with the structure of any such bridge approaches or other work and according to plans sections and specifications to be previously submitted to and reasonably approved by the Company or in case of difference between them and the Promoters by an arbitrator to be appointed as herein-after provided Provided that if the Company do not within twenty-one days after such submission signify their disapproval of such plans sections

and specifications they shall be deemed to have approved thereof All such works shall be executed according to the plans sections and specifications so approved or so deemed to be approved and under the superintendence if the same be given and to the reasonable satisfaction of the Company The Promoters shall so maintain and use the tramway works and apparatus as not to injuriously affect any such bridge approaches or other work and in the event of any injury being occasioned to such bridge approaches or work by the construction maintenance user or removal of the tramways works and apparatus upon or over the same the Company after giving (except in cases of emergency when they shall give the longest notice practicable) not less than seven clear days' notice in writing to the Promoters of their intention so to do may make good the injury and may recover from the Promoters the reasonable expense of so doing:

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- (3) If by reason of the construction of the tramway over any such bridge or other work or the user thereof it becomes necessary to strengthen or reconstruct the same the Company shall give notice accompanied by sufficient plans sections and specifications to the Promoters of such works as may be reasonably necessary and may after fourteen days from the date of the notice proceed with all due despatch to execute such works as may be reasonably necessary in that behalf and the reasonable expense of so doing shall be repaid to them by the Promoters Provided that in case of emergency the Company shall not be required to give fourteen days' notice as aforesaid but shall give the longest notice possible:
- (4) The Promoters shall on demand pay to the Company the reasonable expense of lighting and watching the works of the Company during the execution or repair by the Promoters under this Order of any work or apparatus affecting any bridge railway or other work belonging to the Company for preventing all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Promoters or their contractors or any person in the employ of either of them:
- (5) The Promoters shall not in any manner in the execution maintenance user or repair of any of their works or apparatus obstruct or interfere with the free uninterrupted and safe user of any railway or other work belonging to the Company or any traffic thereon:

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(6) The Promoters shall be responsible for and make good to the Company all losses damages and expenses which may be occasioned to the Company or any of their works or property by or by reason of the execution or failure of any of the intended works or apparatus or by or by reason of any act default or omission of the Promoters or of any person in their employ or of any contractors for the intended works or any part thereof:

(7) If the Company hereafter require under their existing powers to widen lengthen strengthen reconstruct alter or repair any such bridge upon which the tramway is laid or the approaches thereto or to widen or alter any railway thereunder and it shall be necessary for such purpose that the working or user of any part of the tramway upon such bridge or approaches shall be wholly or in part stopped or delayed or that such part of the tramway be temporarily taken up or diverted and if the Company accordingly give to the Promoters fourteen days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up or diversion then the working or user of such part of the tramway shall be stopped or delayed or such part of the tramway shall be taken up or diverted as stated in such notice at the reasonable expense of the Promoters and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purpose as aforesaid and such part of the tramway shall be restored with all possible despatch and in such case the Company shall not be liable to pay compensation in respect of such stoppage delay or taking up or diversion:

(8) The Promoters shall from time to time pay to the Company any additional expense which the Company may reasonably incur in effecting such widening lengthening strengthening reconstructing altering or repairing as is mentioned in the last preceding subsection or in the maintenance of any bridge approach or other work of the Company by reason of the existence or user of the tramway or any of the works or apparatus connected therewith:

(9) If having regard to the proposed position of the works of the Promoters when considered in relation to the position of the works of the Company at any point where the wires of the Company pass over or under the tramway it is

advisable that the electric telegraphic telephonic or signal wires or apparatus belonging to or maintainable by the Company shall be altered the Company may execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Promoters :

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- (10) Any question as to whether it is advisable that any alteration should be made in accordance with the preceding sub-section or whether any work is reasonably necessary or as to the amount of the reasonable expense of executing any work shall unless otherwise agreed to be referred to the Board of Trade for their determination or at the option of that Board to arbitration of a person nominated by that Board and the provisions of the Arbitration Act 1889 shall apply to every such arbitration as if the arbitration were pursuant to a submission :
- (11) Any difference arising under this section between the Promoters and the Company the settlement of which is not provided for by the preceding sub-section shall unless otherwise agreed be settled by an arbitrator to be appointed by the Board of Trade on the application of either party.

Rates.

32.—(1) The Promoters' lessees may demand and take for every passenger travelling upon the tramways including every expense incidental to such conveyance any rates or charges not exceeding one penny per mile and for this purpose a fraction of a mile shall be deemed a mile.

Passengers' fares.

(2) Provided that the Promoters' lessees may appoint stages upon the tramways not less than half a mile in length and may demand and take for every passenger travelling upon the tramways including every expense incidental to the conveyance of such passenger any rates or charges not exceeding one penny for each two stages (or portion of that distance) travelled and for this purpose the fraction of a stage shall be deemed a stage.

33. The Promoters' lessees shall not take or demand on Sunday or any public or local holiday any higher rates or charges than those levied by them on ordinary week days.

As to fares on Sundays and holidays.

34. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof All such luggage is to be carried by hand and not to occupy any part of a seat nor to be of a form or description to annoy or inconvenience other passengers.

Passengers' luggage.

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*Milnrow.*Cheap fares
for labouring
classes.

35.—(1) The Promoters' lessees at all times after the opening of the tramways for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day Good Friday and public holidays always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance On Saturdays the Promoters' lessees in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Promoters' lessees to provide such service as may appear to the Board to be reasonable.

(3) The Promoters' lessees shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

Rates and
charges for
animals
goods &c.

36. The Promoters' lessees may demand and take in respect of any animals goods minerals or parcels conveyed by them on the tramways including every expense incidental to such conveyance any rates or charges not exceeding the rates and charges specified in the schedule to this Order annexed subject to the regulations in that behalf therein contained.

Payment of
rates.

37. The rates and charges by this Order authorised shall be paid to such persons and at such places upon or near to the tramways and in such manner and under such regulations as the Promoters' lessees may by notice to be annexed to the list of rates and charges appoint.

Periodical
revision of
rates and
charges.

38. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by the Promoters or by their lessees or by twenty ratepayers of the district that under the circumstances then existing all or any of the rates and charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if the referee reports that it has been proved to his satisfaction that all or any of the rates and charges should be revised the said Board may make an order in writing altering modifying reducing or increasing all or any of the rates and

charges to be demanded and taken in respect of the traffic on the tramways or on such portion of the tramways in such manner as they think fit and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section. Provided always that the rates and charges prescribed by any such order shall not exceed in amount the rates and charges by this Order authorised. Provided also that a copy of this section shall be annexed to every table or list of rates published or exhibited by the Promoters or their lessees.

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39. As regards so much of any deficiency in the revenue of the undertaking paid or required to be paid by the mayor aldermen and burgesses of the borough of Rochdale (in this section referred to as "the Corporation") out of their borough fund or rate (which rate is in this section called "the Rochdale rate") as lessees of or in respect of the working of the tramways authorised by this Order the Corporation shall and they are hereby required to allow or repay to the Lancashire and Yorkshire Railway Company in respect of any land used by them as a railway constructed under the powers of any Act of Parliament for public conveyance a sum equivalent to three-fourths of so much of the deficiency as the said Company shall be liable to pay or shall have paid by reason and in respect of their assessment to the Rochdale rate and in order to give effect to this section the Corporation shall keep separate accounts of receipts and expenditure in connexion with the tramways authorised by this Order and such accounts shall at all reasonable times be open to the inspection of the said Company and their officers. Provided that for the purpose of ascertaining whether any deficiency has arisen the receipts and expenditure on the service between the Butts in the borough of Rochdale and the terminus of the tramway at Huddersfield Road Newhey shall be considered as a whole.

Provisions in case of deficiency in respect of tramways.

Miscellaneous.

40. Notwithstanding anything in the Tramways Act 1870 to the contrary the Promoters may place and run carriages on and may work and may demand and take tolls and charges in respect of the tramways and in respect of the use of such carriages and may provide such stables buildings carriages trucks horses harness engines machinery apparatus steam cable electric and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the said tramways by animal or mechanical power and in such case the several provisions in this Order contained relating to the working of the tramways and the taking of rates and charges therefor shall extend and apply mutatis mutandis to and in relation to the Promoters and the Promoters may work such tramways and demand and recover such rates and charges accordingly but nothing in this section shall empower the Promoters to create or permit a

Power to Promoters to work tramways.

A.D. 1910. nuisance or to manufacture any such plant, appliances and conveniences
Milnrow. required for the working or user of the said tramways.

Regulations.

41. The regulations authorised by the Tramways Act 1870 to be made by the Promoters of any tramway and their lessees may with respect to any tramways or portions of tramways for the time being belonging to and worked by the Promoters be made by the Promoters alone.

Working
agreements.

42.—(1) Subject to the provisions of this Order the Promoters may—

(A) Enter into and carry into effect contracts and agreements with any person authorised (whether expressly or otherwise) to enter into such contracts or agreements and owning or working any tramways connecting with any of the tramways of the Promoters with respect to—

(i) the construction and equipment of the tramways by this Order authorised;

(ii) the formation of junctions between the tramways and the tramways belonging to such person;

(iii) the working running over using maintaining and managing by either of the contracting parties of the tramways or any of the tramways of the other and the fixing collecting apportionment and distribution of the rates and profits arising therefrom or of a rent for the same;

(iv) the supply under any agreement for the tramways of either of the contracting parties being worked and used by the other of motive power or of engines carriages and plant necessary for the purpose of such agreement Provided that no electrical energy shall be supplied or shall continue to be supplied by the Promoters under this section in any district in which any local authority company or person shall be supplying energy under statutory authority without the consent in writing of such local authority company or person;

(v) the management regulation interchange collection transmission and delivery of traffic coming from or destined for the undertakings of the contracting parties;

(vi) the appointment of officers and servants and generally all such matters as may be deemed desirable for enabling the tramways of the contracting parties to be worked in connexion;

(B) Confirm subject to this section any such contracts and agreements entered into before the confirmation of this Order.

(2) Any contract or agreement under this section shall be submitted to and be subject to the approval of the Board of Trade.

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Milnrow.

(3) During the continuance of any agreement under this section for the working running over or user by one of the contracting parties of the tramways of the other the tramways of the parties so contracting shall for the purposes of calculating maximum rates and charges or fares in respect of conveyance partly over the tramways of the one party and partly over those of the other be considered as one tramway and the maximum charge for conveyance over the tramways of each such party shall be calculated at the maximum rate or fare which would be applicable if the conveyance took place for the entire distance over those tramways only.

(4) In this section the word "tramways" includes light railways and parts of tramways and light railways.

43. The Promoters may include in any mortgage of the local rate made by them under section 20 of the Tramways Act 1870 the moneys coming to them out of the rents reserved under any lease made under the authority of the Tramways Act 1870 or this Order and the rates charges and sums authorised to be taken or received by them under the provisions of this Order.

Mortgages to include rents and rates.

44. All orders regulations and byelaws made and consents and certificates given by the Board of Trade under the authority of this Order shall be signed by a secretary or an assistant secretary of the Board and when purporting to be so signed the same shall be deemed to be duly made in accordance with the provisions of this Order and to be orders and regulations within the meaning of the Documentary Evidence Acts 1868 and 1882 and may be proved accordingly.

Orders &c. of Board of Trade.

45. Any penalty under this Order or under any byelaws or regulations made under this Order may be recovered in manner provided by the Summary Jurisdiction Acts.

Recovery of penalties.

46. Sections 246 and 250 of the Public Health Act 1875 and section 58 (1) of the Local Government Act 1894 shall apply to the accounts of the receipts and expenditure of the Promoters and of their committees and officers with respect to the tramways and the undertaking and to the audit thereof as if such accounts related to receipts and expenditure under the Public Health Act 1875.

Audit of accounts.

47. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 is hereby incorporated with this Order and in construing that section for the purposes of this Order the expression "this Act" where used in that section shall mean this Order.

Protection of local authority.

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*Milnrow.*Power to
hold patent
rights.

48. The Promoters may subject to the provisions of this Order (but only for the purposes of the undertaking and not so as to acquire any exclusive rights therein) acquire and hold any patent or other rights and any licences to use patent rights relating to the use of electrical power.

Form and
delivery of
notices.

49. With respect to notices and to the delivery thereof by or to the Promoters the following provisions shall have effect (that is to say):—

(1) Every notice consent or approval shall be in writing and if given by the Promoters or by any local or road authority or company shall be signed by their clerk or secretary:

(2) Notices and other documents required or authorised to be served under this Order may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any authority or company any such notice or other document shall be delivered or sent by post in a prepaid letter addressed to the clerk to the authority at his office or to the secretary of the company at their registered or principal office.

Provisions as
to arbitra-
tion.

50. Subject to the provisions of this Order where under the provisions of the Tramways Act 1870 and this Order any matter in difference is referred to the arbitration of any person nominated by the Board of Trade the provisions of the Arbitration Act 1889 shall apply to every such arbitration as if the arbitration were pursuant to a submission.

Saving for
general Acts.

51. Nothing in this Order contained shall exempt the Promoters or any person using the tramway or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates and charges authorised by this Order.

[10 EDW. 7 &
1 GEO. 5.]

*Tramways Orders Confirmation
Act, 1910.*

[Ch. ci.]

SCHEDULE.

A.D. 1910.

Milnrow.

MAXIMUM RATES AND CHARGES FOR ANIMALS GOODS &c.

<i>Animals.</i>		Per mile.	
		s.	d.
For every horse mule or other beast of draught or burden			
	per head	0	4
For every ox cow bull or head of cattle	- - -	0	3
For every calf pig sheep or other small animal	- - -	0	1½

Goods and Minerals.

For all coals coke culm charcoal cannel limestone chalk lime salt sand fireclay cinders dung compost and all sorts of manure and all undressed materials for the repair of public roads or highways	- - - - -	per ton	0	2
For all iron iron ore pig iron bar iron rod iron sheet iron hoop iron plates of iron slabs billets and rolled-iron brick slag and stone stones for building pitching and paving tiles slates and clay (except fireclay) and for wrought iron not otherwise specifically classed herein and for heavy iron castings including railway chairs	- - - - -	per ton	0	2½
For all sugar grain corn flour hides dyewoods earthenware timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings	- - - - -	per ton	0	3
For cotton and other wools drugs and manufactured goods and all other wares merchandise fish articles matters or things	- - - - -	per ton	0	4
For every carriage of whatever description	- - -		1	0

Small Parcels.

	Any distance.	
	s.	d.
For any parcel not exceeding seven pounds in weight	0	3
For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight	0	4
For any parcel exceeding fourteen pounds and not exceeding twenty-eight pounds in weight	0	6
For any parcel exceeding twenty-eight pounds but not exceeding fifty-six pounds in weight	0	9
For any parcel exceeding fifty-six pounds in weight such sum as the Promoters may think fit:		

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags

A.D. 1910. of sugar coffee meal and the like shall not be deemed small
Milnrow. parcels but that term shall apply only to single parcels in
 separate packages.

For the Carriage of Single Articles of Great Weight.

Per mile.
s. d.

For the carriage of any iron boiler cylinder or single piece of
 machinery or single piece of timber or stone or other single
 article the weight of which including the carriage exceeds
 four tons but does not exceed eight tons such sum as the
 Promoters may think fit not exceeding per ton 1 0

For the carriage of any single piece of timber stone machinery
 or other single article the weight of which with the carriage
 exceeds eight tons such sum as the Promoters may think fit.

Regulations as to Tolls.

A fraction of a mile beyond an integral number of miles shall be
 deemed a mile.

For a fraction of a ton the Promoters may demand and take tolls and
 charges according to the number of the quarters of a ton in such
 fraction and if there be a fraction of a quarter of a ton such fraction
 shall be deemed a quarter of a ton.

With respect to all articles except stone and timber the weight shall
 be determined according to the imperial avoirdupois weight.

With respect to stone and timber fourteen cubic feet of stone forty
 cubic feet of oak mahogany teak beech or ash and fifty cubic feet
 of any other timber shall be deemed one ton weight and so in
 proportion for any smaller quantity.

RAWTENSTALL CORPORATION.

Rawtenstall. Order authorising the Mayor Aldermen and Burgesses of the
 Borough of Rawtenstall to construct additional Tramways
 in the said Borough.

Short title. 1. This Order may be cited as the Rawtenstall Corporation Tram-
 ways Order 1910.

Incorpora- 2. The provisions of the Lands Clauses Acts (except with respect
 tion of Acts. to the purchase and taking of lands otherwise than by agreement and
 with respect to the entry upon lands by the Promoters of the under-
 taking) and of the Tramways Act 1870 are hereby incorporated with
 this Order except where the same are inconsistent with or expressly
 varied by this Order.

3. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order meanings are assigned have in this Order the same respective meanings:

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Interpreta-
tion.

Provided that in this Order—

The expression “the Act of 1907” means the *Rawtenstall Corporation Act 1907*;

The expression “the tramways” means the tramways and works by this Order authorised;

The expressions “the borough” “the corporation” and “the corporation tramways” have the meanings assigned thereto respectively by the Act of 1907.

4. The corporation shall be the Promoters for the purposes of this Order and are in this Order referred to as “the Promoters.”

5. The Promoters may subject to the provisions of this Order construct and maintain in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order (which plans and sections are in this Order referred to respectively as “the deposited plans” and “the deposited sections”) the tramways herein-after described with all necessary and proper rails plates sleepers channels tubes cables mains wires and electric lines junctions turntables turnouts crossings passing-places poles posts conduits section boxes tramway plant machinery apparatus appliances works and conveniences connected therewith or as may be necessary or proper therefor and for connecting and using the same with the Corporation tramways:

Construction
of tramways.

Provided that nothing in this Order or in any Act wholly or in part incorporated herewith shall extend to or authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the Act of 1882 apply except in accordance with and subject to the provisions of that section.

The tramways will be wholly situate within the borough and are as follows:—

Tramway No. 1 2 miles 6 furlongs and 0·80 chain or thereabouts in length (whereof 2 miles 2 furlongs and 3·30 chains will be single line and 3 furlongs and 7·50 chains will be double line) commencing by a junction with Tramway No. 3 constructed under the powers of the Act of 1907 at a point in Bacup Road 0·36 chain or thereabouts measured in a westerly direction from the east side of the Manchester and County Bank on the north side of Bacup Road passing thence in a northerly direction into and along Burnley Road East towards Burnley and

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terminating at a point in that road 1·00 chain or thereabouts measured in a northerly direction from the junction of the said Burnley Road East with Dean Lane :

Tramway No. 1 shall be laid as a single line except between the points herein-after specified where it shall be laid as a double line (that is to say):—

Between the junction of Bacup Road with Burnley Road East and a point about 2·00 chains north thereof;

Between the junction of Thornfield Road with Burnley Road East and a point about 4·00 chains north-east thereof;

Between points respectively situate about 1·75 chains south-east and 1·75 chains north-west of the junction of Hippias Lane with Burnley Road East;

Between points respectively situate about 2·30 chains south and 1·20 chains north of the junction of Ashworth Road with Burnley Road East;

Between points respectively situate about 8·75 chains and 5·25 chains south-east of the junction of Brock Clough Road with Burnley Road East;

Between the junction of West View Road with Burnley Road East and a point about 3·50 chains north-west thereof;

Between points respectively situate about 8·50 chains and 12·00 chains north-east of the junction of Albert Street with Burnley Road East;

Between points respectively situate about 4·25 chains and 0·75 chain south-west of the south corner of the Hargreaves Arms Inn premises;

Between the junction of Hargreaves Fold Lane with Burnley Road East and a point about 3·50 chains north-east thereof;

Between the junction of Isle of Man Street with Burnley Road East and a point 3·50 chains north-east thereof;

Between points respectively situate about 3·00 chains south-west and 0·50 chain north-east of the junction of Dean Lane with Burnley Road East :

Tramway No. 2 1·30 chains or thereabouts in length of single line throughout its length commencing by a junction with Tramway No. 3 constructed under the powers of the Act of 1907 at or about a point at the junction of Victoria Parade with Bacup Road passing thence in a northerly direction into and terminating in Burnley Road East by a junction with the intended Tramway No. 1 at a point 1·00 chain or thereabouts measured in a northerly direction from the junction of the said Burnley Road East with Bacup Road.

6. Subject to the provisions of this Order the tramways shall for all purposes from part of the Corporation tramways and the Promoters and their lessees and licencees may in respect of the tramways exercise and enjoy all the like powers rights privileges and authorities which they now may or are empowered to exercise and enjoy and shall be subject to all the like penalties conditions restrictions and stipulations as they are subject and liable to with respect to the Corporation tramways within the borough and may demand take and recover in respect of the tramways or any part or parts thereof the like tolls rates and charges for the use thereof and for the conveyance thereon of traffic of all kinds and for the use of carriages placed and run thereon by them as they are now authorised to demand and take in respect of the Corporation tramways within the borough:

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Tramways to
form part of
Corporation
tramways.

Provided that nothing in this Order shall authorise—

(A) The affixing of posts brackets wires or apparatus to any house or building without the consent of the owners and occupiers thereof;

(B) The taking of lands otherwise than by agreement:

Provided also that section 13 of the Act of 1907 shall not apply to the tramways and that subsection (3) of section 23 of the Act of 1907 in its application to the tramways shall be read as if the words “(except with the consent of the Board of Trade)” were omitted therefrom and that for the purposes of this Order no post or other apparatus shall be erected on the carriageway except with the consent of the Board of Trade.

7. Notwithstanding anything in this Order contained the provisions of this section shall apply for the protection of the council of the administrative county of the County Palatine of Lancaster (herein-after called “the county council”) and the ratepayers and inhabitants of the administrative county unless otherwise agreed in writing between the county council and the Corporation (that is to say):—

For protec-
tion of Lan-
cashire
County
Council.

(1) In constructing the tramways the Corporation shall at their own expense pave so much of any main road wherein the tramways are laid as lies between the rails and where two tramways are laid the portion of such road between the tramways and also in any case so much of such road as extends one foot six inches beyond the rails of and on each side of the tramways with granite cubes or setts to the satisfaction of the county surveyor:

(2) The Corporation shall in constructing Tramway No. 1 by this Order authorised over Lumb Bridge and Chapel Bridge respectively in order to strengthen each bridge for the purpose of the tramways lay the rails on a bed of concrete

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of such thickness as the county bridgemaster may reasonably require and in a manner that will insure of no joint in the rails being placed over the structural length of each bridge:

- (3) If any question arises under this section between the Corporation and the county council that question shall be referred to arbitration and the provisions of section 64 (Reference to arbitration) of the Act of 1907 shall apply accordingly.

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